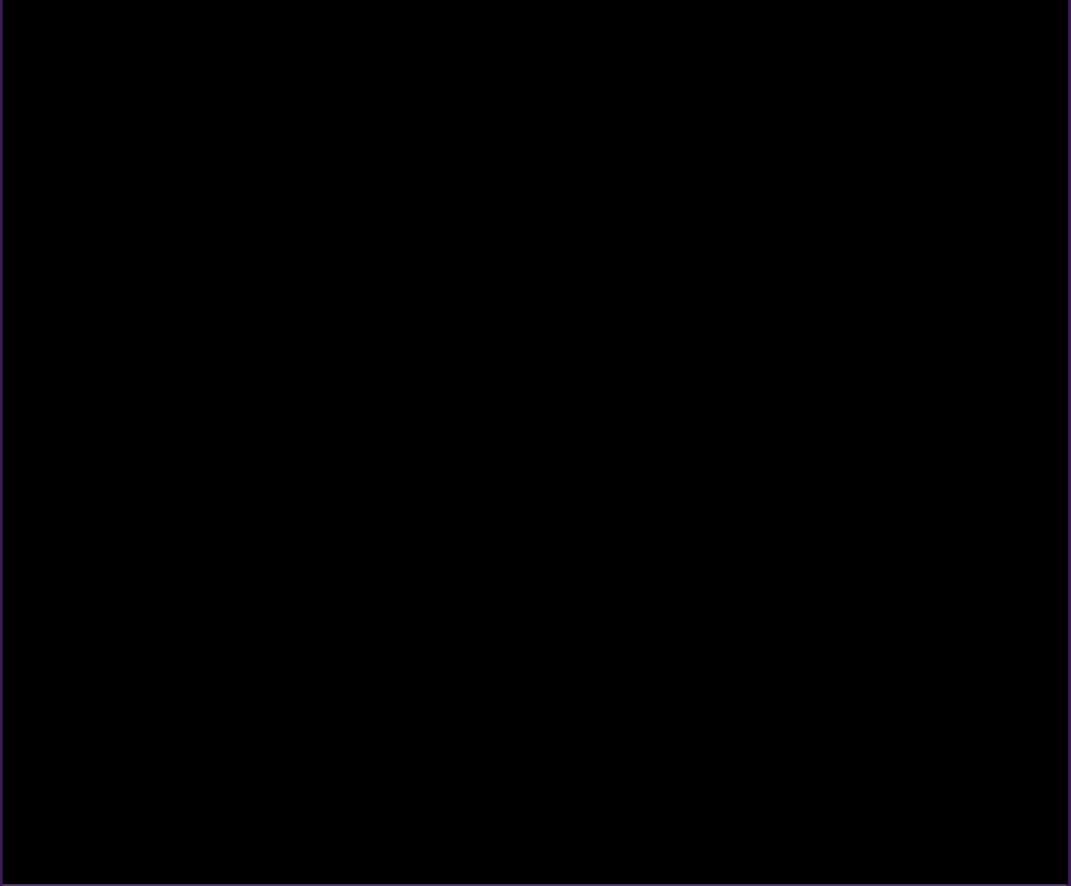
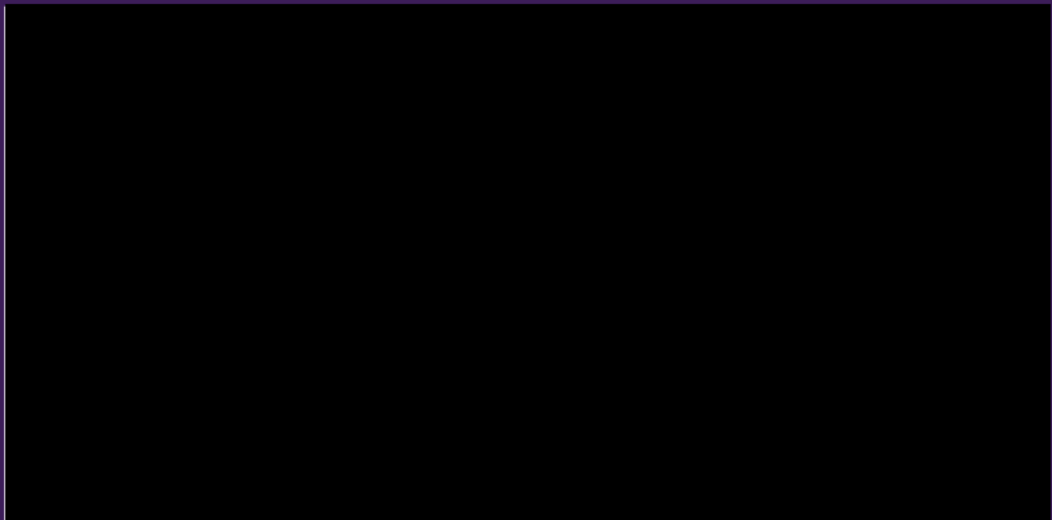




ATTENTION



ATTENTION



**JUSTIFICATION REVIEW DOCUMENT
FAR 6 JUSTIFICATION AND APPROVAL FOR OTHER THAN
FULL AND OPEN COMPETITION**

Program/Equipment: U.S. Army Operational Test Command (USAOTC) has a statutory mission to conduct independent operational tests for materiel and equipment prior to full-scale production in accordance with Title 10 U.S. Code Section 2399.

Authority: 10 U.S.C. 3204(a)(1) as implemented in Federal Acquisition Regulation (FAR) 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

Amount: [REDACTED]

Prepared by: [REDACTED] COM: [REDACTED]
Contract Specialist Date: [REDACTED]
Email: [REDACTED]

Contracting Officer: [REDACTED] COM: [REDACTED]
Contracting Officer Date: [REDACTED]
Email: [REDACTED]

Technical: [REDACTED] COM: [REDACTED]
Contracting Officer's Representative Date: [REDACTED]
[REDACTED]

Requirements: [REDACTED] COM: [REDACTED]
Tech. Director, Fires Support Test Dir. Date: [REDACTED]
Email: [REDACTED]

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager:

[REDACTED]

DSN: [REDACTED]

[REDACTED]

Date: See digital signature

[REDACTED]

[Redacted]

Control No: MICC 2025-66

Small Business Professional:

[Redacted]

DSN: [Redacted]

Date: See digital signature

MICC Office of Legal Counsel:

[Redacted]

COM: [Redacted]

Date: See digital signature

Director, MICC-Fort Cavazos:

[Redacted]

DSN: [Redacted]

Date: See digital signature

Assistant Director, OSBP:

[Redacted]

DSN: [Redacted]

Date: See digital signature

[Redacted]

FAR Part 6 Justification and Approval for Other than Full and Open Competition

1. Contracting Activity: United States Army Mission and Installation Contracting Command - Fort Cavazos (MICC-CV), 36000 Shoemaker Lane, Fort Cavazos, TX 76544-5095.

2. Description of Action: U.S. Army Operational Test Command (USAOTC) requests a 3-months option, and three 1-month options extension to the current 84-month ordering period for the Test and Evaluation Technical Support Services (TETSS) Indefinite Delivery Indefinite Quantity (IDIQ), Cost-Plus-Fixed-Fee (CPFF) contract (W9115116D0007) with SAWTST LLC., 500 Swanson Rd Suite #4, Tyrone GA, 30290. Fiscal Year 2025 Research, Development, Test and Evaluation funds will be used. A modification was issued on [REDACTED], which extended the ordering period from [REDACTED]. This extension to the TETSS contract was necessary to ensure continuity of support to USAOTC's testing mission until the Government Accountability Office (GAO) rendered a decision, which was expected on or about 25 January 2025, and to support a 30-day phase in. The Government made the determination to amend the solicitation, evaluate updated proposals, and conduct a new award decision. This will take additional time which will require an extension to the existing contract to avoid a lapse in service.

The Government is requesting a modification to extend services as follows:

Table 1- Period of Performance

Total Value: [REDACTED]

MICC-Fort Irwin (handling the procurement for the follow-on contract) is completing corrective actions as a result of the GAO protest. [REDACTED] options extension is necessary to ensure continuity of support to USAOTC's testing mission while accomplishing corrective actions that include amending the solicitation, evaluating updated proposals, awarding the follow-on contract, and initiating work via the 30-day phase-in period. This J&A to support the extension is IAW FAR 6.302-1(a)(2)(iii)(B) since award to any other source other than SAWTST would cause unacceptable delays in fulfilling the agency's requirements.

An acquisition plan is not required because this procurement does not meet the threshold in accordance with DFARS 207.103(d)(i)(B).

[REDACTED]

3. Description of Supplies/Services: USAOTC has a statutory mission to conduct independent operational tests for materiel and equipment prior to full-scale production in accordance with Title 10 U.S. Code Section 2399. This contract provides services in support of the USAOTC test mission. The contractor shall provide all labor, management, supervision, supplies, and materiel to perform non-personal services required to support operational testing, data collection, and the experimentation mission of USAOTC for test support services located at [REDACTED]. The contract will consist of the following general requirements:

- a. Test operations support that includes test planning, field test support, data collection and reduction, database development and support for test report preparation as well as developing software and/or execution scripts as required.
- b. Test operations logistics support that involves the preparation and maintenance of sites and facilities.
- c. Maintenance and non-developmental item enhancement to existing test instrumentation systems used during test operations.
- d. Maintenance and dispatch services for test support vehicles and power generation equipment.
- e. Provide technical services, and design and develop software and instrumentation prototype(s) in accordance with technical requirements. Services may range from providing instrumentation mounts, to adapting instrumentation created by other organizations for use to support USAOTC tests,

Period of Performance: [REDACTED]

Total Value: [REDACTED]

4. Authority Cited: 10 U.S.C. 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(B) - Only one responsible source and no other supplies or services will satisfy agency requirements for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements.

5. Reason for Authority Cited: As further described at FAR 6.302-1(a)(2)(iii)(B), for DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements.

- a. Background.

1) GAO post-award protest. A post-award protest B-423099 was submitted to GAO on [REDACTED] with a decision to be rendered on or about [REDACTED]. An extension to the contract with SAWTST LLC is necessary to continue performance through the Government's corrective action, award of the new contract, and phase in.

2) The table below shows the major projected milestones dates of the follow-on award:

Table 2 - Milestones

SSEB Review Complete	[REDACTED]
PNM Approved	[REDACTED]
CRB Initiate Review (SSDD, PNM, etc.)	[REDACTED]
CRB Approved	[REDACTED]
Award of Contract	[REDACTED]
30-day phase-in complete	[REDACTED]

b. Alternatives.

1) Suspension of Contract Support. The TETSS requirement is ongoing and critical to mission accomplishment. Suspension of contract support means USAOTC will experience critical disruptions to their missions and cause significant impacts to scheduled operational tests, which will affect established program milestones and program costs for systems scheduled to undergo operational testing. These delays will result in stoppages to the Army's ability to field improved technology to operational formations. Considering these impacts, this alternative is not viable and is not in the Government's best interest.

2) Use of In-House Resources. USAOTC lacks sufficient workforce, technical expertise, and resources to perform the required TETSS functions. USAOTC does not contemplate acquiring additional, adequately trained personnel in the near term. Attempting to initiate actions to increase the Government workforce to accomplish the mission would take years and result in multiple mission failures during the time required to adequately recruit and staff a trained workforce. This alternative is not viable and is not in the Government's best interest.

3) Conduct a competitive acquisition for a bridge contract. There is insufficient time to competitively solicit, evaluate and award a new contract, conduct phase-in activities, conduct property inventories, obtain security clearances and familiarize a new contract work force with the ongoing test mission. Any contractor other than the incumbent does not have a sufficiently knowledgeable workforce readily available to immediately assume the USAOTC test mission. This alternative is not viable and is not in the Government's best interest.

4) Extension of the current contract. Negotiating an extension of the current contract with the incumbent is a viable solution that provides continuity of support to the USAOTC mission. This alternative ensures there is no degradation of support to the highly technical requirements of the contract.

c. Impact if justification not approved. Not approving this extension will result in a lapse in service and USAOTC failure to execute its operational testing mission in accordance with the approved testing schedule and failure to meet its statutory requirements IAW 10 U.S.C. Sections 139 and 2399.

6. Efforts to Obtain Competition: The Contracting Officer shall publish the J&A Sole source notice in accordance with (IAW) FAR Part 5.202 (a)(10), this action will not be synopsisized. To date, no other sources have written to express interest in the acquisition.

a. Effective Competition: Because this is a sole source action, effective competition is not applicable.

b. Subcontracting Competition: The current contractor is a small business; therefore, a subcontracting plan is not required.

7. Actions to Increase Competition: The follow-on requirement is being procured as an 8(a) competitive requirement. This is a sole source action to allow the Government adequate time to complete its evaluation of proposals received for a competitive 8(a) solicitation.

Based on historical publications of sources sought and justification and approvals, no valid vendor responses were received. In further detail, J&A MICC 2022-85 was published on SAM.gov from 19 through 27 October 2022, sources sought published 02 April through 04 April 2024, J&A MICC 2025-09, published on SAM.gov from 19 through 28 October 2025, and sources sought published on SAM.gov from 07 March through 21 March 2025; all of which resulted in zero interested vendor responses.

8. Market Research: Market research was conducted in accordance with FAR Part 10 within the last 12 months as part of the award process associated with GAO Protest B-423099 and was meaningful to discover all relevant material. Further, this action is needed without delays to continue testing support while the contracting office addresses the corrective action in response to the GAO protest of the competitive award. A Sources Sought Notice of Intent to Sole Source was posted in SAM.gov on 07 March 2025, and closed on 21 March 2025. The notice received no response.

9. Interested Sources: None identified other than the incumbent.

10. Other Facts:

a. Procurement History: The TETSS requirement has historically been awarded under the Small Business Administration 8(a) program as a Cost-Plus-Fixed-Fee (CPFF) contract type.

b. The current contract, W9115116D0007, was awarded on [REDACTED] to SAWTST, LLC with a period of performance (PoP) from 1 [REDACTED] [REDACTED] consisting of a 60-month ordering period. A unilateral modification P00001 was executed on [REDACTED] to reflect a corrective action to adjust the PoP to [REDACTED]. The modification was executed based upon corrective actions taken by the Government in response to GAO protest B-412990. Modification P00002 was executed on [REDACTED] through [REDACTED]. This re-award was made based upon corrective actions taken by the Government in response to GAO protest B-412990.2. Modification P00003 was executed on [REDACTED] to change the [REDACTED]. This re-award was based upon GAO denial of protest B-412990.3. Modification P00019 was executed on [REDACTED] exercise FAR 52.217-8, Option to Extend Services, for an additional [REDACTED]. Modification P00022 (J&A Control Number: MICC 2022-85) was executed on [REDACTED] the authority of FAR 6.302-1 to extend performance of contract W9115116D0007 for an additional [REDACTED] from [REDACTED]. Modification P00026 (J&A Control Number: MICC 2024-40) was executed on [REDACTED] under the authority of FAR 6.302-1 to extend performance of contract W9115116D0007, with option periods, through [REDACTED]. Modification P00029 (J&A Control Number: 2025-9) was executed on [REDACTED] as a result of GAO Protest B-423099 under the authority of FAR 6.302-2 to extend performance of contract W9115116D0007 from [REDACTED]. The first two J&As were issued under the authority of FAR 6.302-1, and the last J&A under the authority of 6.302-2.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: See digital signature

[REDACTED]

Contracting Officer Representative

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: See digital signature

[REDACTED]

Technical Director, Fire Support Test Directorate

[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using Cost Analysis and Certified Cost or Pricing data, IAW FAR 15.404-1(c) and FAR 15.403-4. As a part of this basis, certified cost or pricing data will be required due to this being a non-competitive, non-commercial action exceeding the threshold for obtaining certified cost and pricing data established in FAR 15.403-4(a)(1).

[REDACTED]

Date: See digital signature

[REDACTED]

Contracting Officer

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: See digital signature

[REDACTED]

Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the extension of Test Evaluation and Technical Support Services on another than full and open competition basis pursuant to the authority of Title 10 United States Code Section 3204(a)(1), FAR 6.302-1(a)(2)(iii)(B) - Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. The estimated value of the contract is [REDACTED] for [REDACTED], if necessary, from approximately 1 [REDACTED]. The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

KUKES.SCOTT.DE [REDACTED]
AN [REDACTED]

SCOTT D. KUKES
Alternate Advocate for Competition
U.S. Army Mission and Installation Contracting Command, JBSA Fort Sam Houston, TX